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Blue Ember Opening Brief

United States Court of Appeals for the Fourth Circuit

Blue Ember Biologics, LLC v. Granite Heron Logistics, Inc.

No. SYN-CA4-26-CV-4105

Filed March 9, 2026

Granite Heron made a deliberate pre-verdict choice. Its first Rule 50(a) motion challenged causation only and said mitigation remained for the jury. Its motion after all evidence renewed that same causal challenge and again withheld any request for a directed mitigation amount. Only after the jury deducted \$300,000 did Granite Heron seek judgment imposing a \$1,500,000 deduction. Rule 50(b) renews a specified motion; it does not permit a losing party to replace the ground it presented before submission.

The district court recognized the serious preservation defect but treated causation and mitigation as a single damages boundary. That approach cannot be reconciled with the motions' express limitation or with the different burdens assigned to caused loss and the affirmative defense. The JMOL must be reversed.

The alternative Rule 59 ruling is different. It was timely, rested on an independent clear-weight assessment, and conditionally ordered a retrial of gross damages and mitigation. Those financial questions are separable from breach and causation. Blue Ember accordingly asks for four precise actions: reverse mitigation JMOL; affirm the conditional damages new trial; affirm its damages-only scope; and vacate the amended judgment with a remand for that retrial.

Party disclosure, related matters, and argument request

Blue Ember is a privately held limited liability company whose sole member and corporate parent is Blue Ember Holdings, Inc., a privately held Delaware corporation based in Asheville. No publicly held corporation owns ten percent or more of Blue Ember or its parent. The separate disclosure statement remains accurate as of this filing. Cobalt Finch Bioprocessing appears only as a nonparty commercial actor in evidence about possible alternate production; it has no ownership relationship with Blue Ember identified in this appeal.

Counsel know of no related appellate proceeding arising from the validation lot, the September 2024 custody event, or the December 15, 2025 amended judgment. No other case is expected to affect this court's jurisdiction or require coordination. The district matter remains available solely for action consistent with the eventual mandate.

Oral argument would assist the court because preservation turns on the exact relationship between Rule 50(a) and Rule 50(b), while the alternative relief requires separate treatment under Rules 50(c) and 59. The record presents a clean contrast between a causal sufficiency challenge and a mitigation defense that was tried to the jury but expressly excluded from pre-verdict judgment. Argument can also clarify why reversing JMOL does not restore the original award for immediate collection: the affirmed conditional ruling activates a financial retrial while leaving liability and causation settled.

Maya Holt will argue for Blue Ember, with Jonas Bell also appearing through Holt Bell PLLC.

Jurisdiction and timeliness

The district court exercised diversity jurisdiction over Blue Ember's contract claim. On October 15, 2025, it entered an original judgment for \$3,900,000 after the special verdict. Granite Heron filed its combined Rule 50(b) and Rule 59 motion on November 10, within the twenty-eight days allowed for the posttrial requests. The court resolved every component of that filing on December 15 and entered the amended \$2,700,000 judgment the same day.

That amended judgment was a final decision within 28 U.S.C. § 1291. It altered the recoverable amount, conditionally ruled on a new trial as Rule 50(c) requires, and left no claim unresolved. The conditional feature did not create an open district proceeding; it specified what would happen if appellate review displaced the granted JMOL.

Federal Rule of Appellate Procedure 4(a)(4)(A)(i) and (v) makes the civil appeal period run from disposition of a timely Rule 59 or Rule 50(b) motion. Blue Ember filed its notice January 12, 2026, twenty-eight days after the December 15 order and within Rule 4(a)(1)(A)'s thirty-day period. The district clerk certified the record the next day. No United States party, unresolved tolling motion, or interlocutory certification affects the calculation. This court has jurisdiction to review both the amended judgment and the conditional ruling.

Questions presented

1. Whether Rule 50(b) authorized JMOL on mitigation when Granite Heron's two Rule 50(a) motions identified causation as their only ground, expressly left mitigation to the jury, and requested no directed \$1,500,000 reduction before the verdict.
2. Whether the district court retained independent authority under Rule 59 to conditionally order a new trial after determining that the financial verdict was contrary to the clear weight of the mitigation evidence, even though mitigation was unavailable as a renewed-JMOL ground.
3. Whether the conditional retrial may be confined to gross damages and mitigation when the special verdict, instructions, proof, and district findings make those financial questions distinct and separable from liability and shipment causation.
4. Whether the proper structured disposition is to reverse the mitigation JMOL, affirm the conditional new-trial ruling, affirm the damages-only limitation, vacate the amended judgment, and remand for a financial retrial under Rule 50(c)(2).

Blue Ember does not ask the court to decide whether the mitigation evidence compelled the \$300,000 deduction the first jury selected. Nor does it request reinstatement of the \$3,900,000 original judgment as an immediately payable recovery. Its position recognizes that reversal of JMOL activates the independently affirmed conditional retrial unless this court orders otherwise.

Nature of the case

Blue Ember contracted with Granite Heron to transport a temperature-sensitive validation lot for the BE-214 biologics program. The integrated writings imposed cold-chain custody, continuous monitoring, prompt escalation, and documentation requirements. During a power transition at Granite Heron's Fletcher facility, the shipment monitor recorded fifty-four minutes above the specified threshold and a maximum reading of minus 42.8 degrees. Escalation was delayed, and Blue Ember rejected the lot for its intended validation use.

A jury found breach and causation. It calculated \$1,350,000 for the lot, \$850,000 for a replacement campaign, and \$2,000,000 for bounded delay, totaling \$4,200,000. It separately found that Blue Ember could have reduced the loss and subtracted \$300,000. The posttrial dispute arose because Granite Heron urged a much larger reduction based on a possible December campaign at Cobalt Finch.

The appeal is not about whether mitigation was tried. It was. The question is whether Granite Heron requested judgment on that issue at the procedural moment Rule 50(a) demands. The actual motions answer no. That defect requires reversal of JMOL, but it does not erase the district court's independently reasoned conclusion that a new jury should reconsider the financial evidence under Rule 59.

The transaction separated custody duties from loss response

The Master Logistics Services Agreement assigned Granite Heron responsibility for shipment custody and incorporated the statement of work and quality protocol. The BE-214 documents required specified frozen conditions, calibrated monitoring, documented handoffs, and immediate escalation of a potentially disqualifying event. Blue Ember retained authority over validation suitability and lot disposition. Those provisions framed breach and causal responsibility for the jury.

Mitigation concerned a later and different inquiry. After the excursion, Blue Ember investigated whether another manufacturer could perform an earlier replacement campaign. Cobalt Finch offered a conditional December slot, subject to diligence, transfer, quality controls, and a November readiness decision. The parties disputed whether reasonable action would have preserved that option and how much delay it could actually have avoided.

North Carolina law places the failure-to-mitigate defense and its quantification on the party asserting the reduction. *Thermal Design, Inc. v. M&M Builders, Inc.* explains that an injured party must use due care while the breacher proves both failure and reducible amount. *Clark v. Bichsel* likewise treats mitigation as an affirmative defense. Thus causation of gross loss and avoidability after injury were related economically but were not the same legal issue, evidentiary burden, or requested judgment.

The excursion and causal proof

The custody evidence traced the lot through Granite Heron's Fletcher facility and connected the monitor to the relevant trailer and shipment. Witnesses described a power-transition failure, loss of compliant conditions, delayed escalation, and the recorded temperature profile. Quality personnel explained why measurable activity in limited samples did not establish validation suitability across the lot or replace the missing continuous-custody assurance.

Blue Ember presented a bounded causal chain rather than treating every later program expense as recoverable. Its experts separated the rejected lot's value, incremental replacement work, and delay associated with moving the validated campaign. Source invoices and schedules supported the categories. Granite Heron challenged the chain through sample activity, ordinary development uncertainty, and cost classification.

Those competing accounts went to the jury under instructions distinguishing contract breach, causation, gross damages, and mitigation. Granite Heron's Rule 50(a) motions targeted whether the excursion legally caused lot rejection, replacement expense, and delay. The district court denied the motions because reasonable jurors could accept Blue Ember's integrated proof. Granite Heron has not obtained posttrial JMOL on causation, and Blue Ember does not place that favorable finding at issue. This settled causal foundation matters when defining the later damages-only retrial.

The Cobalt Finch opportunity remained disputed

Cobalt Finch had relevant equipment and tentatively held a December 2 production slot. Its communications described a proposed transfer sequence, an estimated \$300,000 incremental commitment, and diligence steps that had to be completed before a November readiness gate. It had not qualified the BE-214 process, guaranteed acceptance, completed change control, or removed every technical and scheduling risk when Blue Ember declined to commit.

Granite Heron presented Dr. Elodie Park's view that a reasonable sponsor would have secured the option while conducting staged diligence. Her model used Blue Ember expert Kellan Brooks's risk-adjusted delay framework, estimated \$1,800,000 of avoided gross delay, and subtracted \$300,000 of incremental expense to produce a proposed \$1,500,000 net reduction. Blue Ember answered that the short decision window, unfinished qualification, capacity conditions, and possible duplicated cost made the path materially uncertain.

The jury found some unreasonable loss response but accepted only a \$300,000 net deduction. Its answer confirmed that mitigation was treated separately from whether Granite Heron caused the underlying injury. The strength or weakness of the Cobalt Finch proof could support weight-based review, but it could not retroactively convert a causation-only pre-verdict request into a specified mitigation motion.

Gross damages and deduction were itemized

The special verdict made the financial architecture visible. Jurors first valued the lost validation lot at \$1,350,000. They next found \$850,000 in incremental replacement-campaign expense and \$2,000,000 in bounded delay loss. The sum of those gross components was \$4,200,000. Only after making those findings did the jury answer the distinct mitigation questions and subtract \$300,000, yielding \$3,900,000.

That structure defeats two possible misunderstandings. First, mitigation did not determine whether the excursion caused compensable harm. Jurors had already answered breach and causation and quantified the resulting categories before reducing the award. Second, the conditional retrial cannot sensibly isolate the deduction alone. The avoided-delay model shares inputs with gross delay, and incremental alternate-production cost affects the net comparison. A new financial jury should reconsider gross damages and mitigation together.

The separation also supports retaining liability and causation. Testimony about the Fletcher event, custody duties, and validation consequences established those issues independently from the later Cobalt Finch choice. No inconsistent or compromise verdict appears: the jury answered each liability and causal question directly, then made distinct numerical findings. A bounded financial retrial respects those settled answers while curing the weight concern the district court identified.

The first Rule 50(a) motion was causation only

At the close of Blue Ember's evidence on October 10, Granite Heron stated that it moved for judgment as a matter of law on causation only. It identified the proposed judgment as a ruling that the evidence could not support attribution of lot rejection, replacement expense, and delay to the transport excursion. The motion discussed sample activity, quality disposition, cost classification, and program forecasting as asserted breaks in that causal chain.

The motion then drew an unmistakable boundary. It said it did not seek judgment on the affirmative defense of failure to mitigate. It did not ask the court to decide Blue Ember's response to the Cobalt Finch opportunity, select a net reduction, or determine that an earlier campaign would have succeeded. It explained that those matters remained for the jury under a separate instruction.

Blue Ember responded to the specified causal challenge and the court denied it. Because mitigation was affirmatively excluded, Blue Ember had no notice that Granite Heron claimed the mitigation proof was legally insufficient or that the court might direct a fixed \$1,500,000 reduction. Rule 50(a)(2) exists to provide that notice while an evidentiary deficiency can still be addressed before submission. The actual first motion did the opposite.

The second motion preserved the same narrow ground

At the close of all evidence on October 14, Granite Heron renewed its causation request. It relied on the same ground raised when Blue Ember rested and used the completed defense proof to challenge the link between the excursion and claimed loss. It again stated that it did not broaden the motion to the separate mitigation defense and expressly left the reasonableness and amount of any Cobalt Finch deduction for the verdict.

The district court denied the renewed request after hearing argument outside the jury's presence. It found sufficient evidence for reasonable jurors to connect the custody event to lot disposition, replacement cost, and delay. The court did not direct a mitigation result and instead submitted separately framed questions carrying the parties' distinct burdens.

The jury found breach and causation, then returned the three gross-damage amounts and mitigation deduction described above. The October 15 judgment implemented the net \$3,900,000 award. Nothing in the charge conference, verdict form, or ruling amended the written Rule 50(a) ground. A general effort to reduce damages cannot substitute for the particular judgment and supporting law and facts the rule required Granite Heron to state. The second motion confirms, rather than cures, the preservation failure.

Granite Heron first sought mitigation JMOL after verdict

The November 10 combined motion presented the Cobalt Finch theory as a basis for judgment as a matter of law for the first time. Granite Heron asked the court to replace the jury's \$300,000 deduction with \$1,500,000, reasoning that \$1,800,000 in delay could have been avoided at \$300,000 incremental cost. It alternatively moved under Rule 59 for a new financial trial because the verdict allegedly gave inadequate weight to the same evidence.

Blue Ember opposed the JMOL branch on the straightforward ground that Rule 50(b) permits renewal, not invention. It separately answered the Rule 59 request, emphasizing uncertainty surrounding qualification, technical transfer, and the readiness gate. Granite Heron's reply acknowledged the actual wording of both pre-verdict motions and did not rely on a generic reservation. It instead argued that avoidable delay was closely related to caused delay.

At the December 8 hearing, Judge Miriam D. Carver pressed counsel on where Granite Heron had requested mitigation judgment before submission. Counsel conceded that it had not used that request and recognized that JMOL would be unavailable if the court treated the express limitation as controlling. The hearing therefore preserved a clean legal issue while leaving the alternative new-trial request independently presented.

The district court entered two analytically separate rulings

On December 15, the court granted mitigation JMOL by characterizing caused delay and avoidable delay as the same ultimate damages boundary. It acknowledged that the words “causation only” did not include mitigation and that both motions affirmatively left the defense to the jury. Nevertheless, it treated the trial of mitigation evidence and the relationship between the amounts as sufficient practical notice. It reduced the award to \$2,700,000.

The court then performed the separate task required by Rule 50(c)(1). Independently weighing the financial proof under Rule 59, it conditionally found the verdict contrary to the clear weight of the evidence. It explained that the concrete Cobalt Finch slot, staged diligence, schedule comparison, and expert models justified another trial even though uncertainty prevented reliance on that assessment as a substitute for proper Rule 50 preservation.

Finally, the court limited the conditional trial to gross damages and mitigation. It found liability and causation distinct, supported by separate proof, and expressly fixed. The financial categories and deduction, by contrast, had to be reconsidered together to avoid inconsistent assumptions. Thus reversal of JMOL need not overturn the new-trial decision; it activates the condition under Rule 50(c)(2).

Summary of the argument

Rule 50(a)(2) required Granite Heron to identify the judgment sought and the supporting law and facts before the case went to the jury. *Unitherm* treats the pre-verdict and renewed stages as linked. *Price v. City of Charlotte* requires the reason advanced under Rule 50(b) to have been raised under Rule 50(a). Granite Heron not only omitted mitigation; it expressly excluded that affirmative defense twice. The postverdict fixed-deduction request was therefore not a renewal.

The court's practical-notice theory does not save the ruling. *Plyler v. Cox*, 145 F.4th 501, 510–11 (4th Cir. 2025), holds that a distinct basis first raised under Rule 50(b) is unavailable even though the general sufficiency issue actually raised under Rule 50(a) remains reviewable. Here causation remains reviewable, but mitigation was a different ground with a different burden, temporal focus, instruction, and verdict question.

Rule 59 supplies independent relief. The district court timely and conditionally found the financial verdict against the clear weight of evidence. Under *Atlas Food Systems* and *Rice v. Community Health Association*, damages are separable from settled liability and causation on this record. Rule 50(c)(2) consequently calls for the conditional trial to proceed after JMOL is reversed, with the amended judgment vacated and the matter remanded.

Standards of review

Whether a Rule 50(b) motion exceeded the ground specified before verdict is a legal question reviewed without deference. The court must examine what judgment the Rule 50(a) movant actually sought and what law and facts it stated, not reconstruct a broader motion from evidence that happened to be tried. Review of the resulting JMOL also applies the familiar no-reasonable-jury standard, but this appeal can resolve the challenged grant at the antecedent renewal boundary.

A conditional new-trial ruling is reviewed for abuse of discretion. Rule 59 permits the trial judge to weigh evidence and assess whether a verdict is against the clear weight, rests on false evidence, or would create a miscarriage of justice. *Atlas Food Systems & Services, Inc. v. Crane National Vendors, Inc.* recognizes the district court's distinctive role and correspondingly deferential appellate review.

The scope of a partial retrial is likewise reviewed for abuse of discretion within the legal requirement that retained and retried issues be distinct and separable without injustice. *Rice* approves a damages-only trial when that condition is satisfied. Jurisdiction and interpretation of Rule 50(c)'s appellate consequence are legal questions. Under any appropriate formulation, the written pre-verdict limitation controls the JMOL issue while the reasoned Rule 59 findings warrant deference.

Liability and causation are separable from the financial retrial

The jury's sequence demonstrates separability. It decided contract formation, breach, and whether Granite Heron's custody failure caused loss before quantifying any dollar category. The trial evidence likewise divided operational proof from financial proof: monitor and quality witnesses established the excursion and validation consequence; later capacity, scheduling, and expert evidence addressed the amount and avoidability of loss. Neither side identifies a compromise or inconsistent liability answer.

Atlas Food Systems permits a partial retrial only when division will not create confusion or injustice. That safeguard is met because the new jury can receive settled premises that Granite Heron breached and caused compensable loss, then determine the proper gross categories and mitigation reduction from the financial evidence. *Rice* confirms that a distinct damages issue may be retried without sacrificing finality on properly resolved merits questions.

Gross damages and mitigation must stay together. Granite Heron's avoidance model uses the same delay baseline that Blue Ember's expert calculated, and alternate-production expense affects the net benefit. Isolating only the deduction could force the new jury to accept disputed gross inputs. The district court chose the coherent boundary: reopen all financial components, retain liability and causation. That limited scope promotes economy, fairness, and repose without insulating either party's damages theory.

Rule 50 requires a specified pre-verdict ground

Rule 50(a)(2) directs a movant to state the judgment sought and the law and facts entitling it to judgment before submission. Rule 50(b) authorizes renewal of that motion after verdict; the word “renewed” describes continuity, not a general opportunity to select any issue tested at trial. The requirement lets the opponent cure an asserted gap and permits the trial judge to evaluate sufficiency before the jury is discharged.

That function is especially important when one case contains adjacent but distinct issues. Blue Ember bore the burden to prove that the custody breach caused gross loss. Granite Heron bore the burden to prove unreasonable mitigation and quantify a reduction. Additional mitigation evidence would not necessarily answer a causal deficiency, and additional causal evidence would not necessarily answer whether the Cobalt Finch path was reasonable. A motion must identify which legal insufficiency the movant asserts.

Granite Heron’s proposed \$1,500,000 judgment also differed from the relief requested before verdict. Its Rule 50(a) motions sought elimination or reduction of causal categories, never a mandatory Cobalt Finch deduction. The district court’s conclusion that both affected the final amount cannot erase the rule’s demand for a specified judgment and grounds. Almost every damages defense affects a net recovery; that general relationship does not make them interchangeable.

The actual motions foreclose a mitigation renewal

The October 10 motion used three layers of limitation. Its opening identified causation only. Its discussion said Granite Heron did not seek judgment on the mitigation defense. Its requested relief left Blue Ember's Cobalt Finch response and any net deduction to the jury. The October 14 filing then incorporated the same causal ground and repeated that it did not broaden the request to mitigation.

Those statements shaped the proceedings. Blue Ember answered legal sufficiency on lot disposition, replacement cost, and delay causation. It had no reason to seek reopening to supply mitigation evidence or to demand a ruling on whether Granite Heron had quantified a compulsory deduction. The judge sent mitigation to the jury under separate burdens exactly as the defense requested.

After the verdict, Granite Heron changed both theory and remedy. It relied on reasonable post-injury conduct rather than causal linkage to the breach, invoked its own affirmative-defense burden, and requested a specific deduction derived from Park's model. Calling both subjects "recoverable delay" describes their arithmetic interaction but not their legal identity. Rule 50 preservation is assessed at the level of the asserted insufficiency. On the actual record, the mitigation insufficiency was never asserted before verdict and could not be renewed afterward.

Final-decision review requires a component-by-component remedy

The December 15 order and amended judgment ended the district phase and support jurisdiction under § 1291. Blue Ember's timely January 12 notice brings the granted JMOL, the conditional Rule 59 ruling, and the scope of that ruling before this court. Those components should not be collapsed into a choice between the jury's \$3,900,000 net figure and the court's \$2,700,000 amended figure.

Reversing JMOL removes the legal basis for the amended amount. Affirming the conditional new trial recognizes the district court's independent clear-weight judgment. Affirming its scope preserves the final liability and causal findings while reopening gross damages and mitigation. Vacating the amended judgment clears the operative financial judgment for the remand that Rule 50(c)(2) contemplates.

This structure also prevents premature collection. The original judgment does not become immediately payable because the conditional new trial proceeds when JMOL is reversed, unless the appellate court orders otherwise. The amended judgment cannot remain because its \$2,700,000 amount rests on reversed JMOL. On remand, a new jury determines gross damages and a properly supported mitigation deduction under the settled liability and causation premises. A new district judgment will embody that result.

Unitherm, Price, and Plyler enforce continuity of grounds

Unitherm Food Systems, Inc. v. Swift-Eckrich, Inc., 546 U.S. 394, explains why the two Rule 50 stages operate together. The trial judge must receive a proper renewed request to assess the verdict and the consequences of possible new-trial relief. The linkage would be defeated if a party could use postverdict practice to select a legal insufficiency it deliberately excluded before submission.

This court's published decision in *Price v. City of Charlotte*, 93 F.3d 1241, is more specific: the reason offered for judgment must be raised in the Rule 50(a) motion and reasserted under Rule 50(b). That requirement apprises both court and opponent while correction remains possible. Granite Heron did the reverse. It raised causation at both pre-verdict opportunities, then offered mitigation as a JMOL reason only after learning the deduction.

Plyler v. Cox, 145 F.4th 501, 510–11 (4th Cir. 2025), supplies the exact distinction. A movant that challenged sufficiency generally under Rule 50(a) could retain that general issue, but a defendant-specific basis first advanced under Rule 50(b) was unavailable. Granite Heron's causal challenge likewise remains reviewable; the separately burdened mitigation theory first advanced after verdict does not.

These authorities do not require ritual phrasing. They require substantive continuity. Had Granite Heron asserted that the Cobalt Finch proof could not legally support less than a fixed reduction, Blue Ember and the court could have addressed that claim before deliberations. Because Granite Heron affirmatively left the decision to jurors, the later motion cannot be characterized as the renewal that Rule 50(b) authorizes.

Wiener governs appellate theory after Rule 50(b) preservation

Wiener v. AXA Equitable Life Insurance Co., 153 F.4th 413, 422 (4th Cir. 2025), considered whether appellate reasoning varied impermissibly from a sufficiency issue already raised in Rule 50(b). It allowed slightly different appellate arguments supporting that preserved damages issue. It did not permit a party to move from one Rule 50(a) ground to a distinct Rule 50(b) ground.

The differences are substantive. Causation asks whether the breach produced the claimed loss; mitigation assumes an injury and asks whether reasonable later conduct would have reduced it. Blue Ember carried the former burden, Granite Heron the latter. The jury instructions and verdict form separated them. Granite Heron's new model also sought a definite arithmetic remedy absent from its earlier requests.

The unpublished opinions in *Boley v. Armor Correctional Health Services, Inc.* do not supply a contrary rule. The majority discussed notice, cure, fairness, and a possible fundamental-error concept, but that discussion is nonprecedential and cannot overcome *Unitherm*, *Price*, *Plyler*, or the written motions here. The concurrence read *Unitherm* strictly. Blue Ember does not depend on either unpublished view; ordinary preservation doctrine resolves this actual record.

Rule 59 remains independent, and Rule 50(c)(2) supplies the consequence

Granite Heron timely joined an alternative Rule 59 motion within twenty-eight days of the original judgment. Rule 59(a)(1) permits a new trial on some issues after a jury trial. Unlike JMOL, the district judge may weigh the evidence and determine whether the verdict is contrary to the clear weight. Failure to preserve mitigation as a Rule 50 ground therefore did not disable the alternative request.

The December 15 order identified concrete reasons: a held Cobalt Finch slot, relevant capability, staged diligence, a schedule comparison, and expert estimates that the court believed jurors underweighted. It also acknowledged uncertainty and did not convert that assessment into an incontestable damages figure for purposes of Rule 59. Under *Atlas Food Systems*, that reasoned weight determination falls within the district court's discretion.

Rule 50(c)(2) completes the analysis. When an appellate court reverses granted JMOL and sustains the conditional new-trial ruling, the new trial proceeds unless the appellate court directs otherwise. There is no basis to cancel it here. Under *Plyler*, causation remains reviewable on the general ground actually raised, but the later distinct mitigation basis cannot support JMOL. The court should reverse mitigation JMOL, affirm the conditional damages new trial, affirm its damages-only scope, vacate the amended judgment, and remand. Respectfully submitted March 9, 2026 by Maya Holt and Jonas Bell, Holt Bell PLLC, with electronic service on Eli Mercer and Tara Webb.